

SOLVED PRACTICE WORKBOOK

Comparative Constitutional Design - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Comparative Constitutional Design	
1. WHAT SPEC. ISSUES BY "CONSTITUTIONAL DESIGN"?	2. CONTEXT REMAINS
3. LIMITED CONSTITUTIONAL MAP	4. PARLIAMENTARY, PRESIDENTIAL AND SEMI-PRESIDENTIAL GOVERNMENTS
5. INDIA VERSUS THE UNITED KINGDOM	6. INDIA VERSUS THE UNITED STATES
7. FRANCE AND CONSTITUTION	8. STABILITY LESSONS FROM KOREAN AND SWITZERLAND
9. CONSTITUTIONAL SUPREMACY, PARLIAMENTARY SUPERSTARS AND JUDICIAL	10. INDIA'S SYSTEMS
11. FEDERAL DESIGN AND AFTER HOOKS	12. FEDERAL DISTINCTIONS
13. INDIA'S DESIGN IS NOT THE LE MONSIEUR	14. BIPARTISAN DESIGN
15. INDIA AND THE UNITED STATES: SECULARISM	16. INDIA AND FRANCE: PRINCIPLED ENGAGEMENT
17. INDIA'S WORLD	18. THE DESIGN RETAINED BY LAW VERSUS THE PROCESS
19. JUDICIAL SYSTEM	20. INDIA VERSUS THE SUPREME COURT APPOINTMENTS
21. AMENDMENT DESIGN	22. TERM EVALUATION
23. ELECTORAL DISPROPORTION AND DIRECT DEMOCRACY	24. INDIA AND FRANCE: PRESIDENTIAL ELECTIONS
25. INDIA VERSUS THE PRESIDENTIAL SYSTEM	26. DEMOCRATIC DESIGN AND CONSTITUTIONAL SUPERSTARS
27. AMENDMENT DESIGN VERSUS ADAPTED DESIGN	28. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
29. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	30. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
31. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	32. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
33. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	34. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
35. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	36. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
37. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	38. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
39. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	40. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
41. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	42. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
43. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	44. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
45. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	46. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
47. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	48. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
49. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	50. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
51. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	52. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
53. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	54. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
55. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	56. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
57. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	58. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
59. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	60. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
61. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	62. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
63. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	64. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
65. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	66. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
67. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	68. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
69. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	70. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
71. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	72. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
73. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	74. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
75. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	76. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
77. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	78. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
79. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	80. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
81. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	82. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
83. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	84. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
85. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	86. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
87. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	88. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
89. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	90. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
91. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	92. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
93. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	94. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
95. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	96. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
97. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	98. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS
99. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS	100. IS A BROAD TRUTH OF INDIA AND OF POLITICAL SYSTEMS

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Comparative Constitutional Design - Complete Uncompressed Learning Session	3
BASIC MCQS / REMEDIATION	3
Original MCQs 1-36 - Broad Coverage	3
Remedial MCQs 1-12 - Common Error Repair	10
PYQS AND ANSWER PRACTICE	12
Verified and Supporting PYQs with Model Solutions	12
Original Solved Mains Practice	15

Comparative Constitutional Design - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Broad Coverage

OM1. Which statement most accurately describes written and unwritten?

- A. India has a written supreme Constitution; the UK has an uncoded constitution formed by statutes, cases and conventions.
- B. The UK has no constitutional law.
- C. Every written constitution is rigid.
- D. India relies only on convention.

Answer: A

Explanation: Codification, supremacy and rigidity are separate axes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM2. Which statement most accurately describes parliamentary and presidential?

- A. The Indian President governs like the US President.
- B. India's executive is responsible to the Lok Sabha; the US executive has a separate electoral mandate and fixed tenure.
- C. The US Cabinet is collectively responsible to Congress.
- D. Parliamentary government means no separation of powers.

Answer: B

Explanation: Executive-legislative relationship is the decisive comparison. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM3. Which statement most accurately describes semi-presidential?

- A. France is identical to the US model.
- B. Cohabitation is constitutionally impossible.
- C. France combines a directly elected President with a Prime Minister responsible to Parliament.
- D. The French President is only ceremonial.

Answer: C

Explanation: Dual executive authority changes with legislative majority. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM4. Which statement most accurately describes federal design?

- A. India is unitary because residuary power lies with the Union.
- B. Every federation gives equal upper-house representation.
- C. Federalism forbids asymmetry.
- D. India is federal with strong-centre and unitary features; Canada and Australia supply useful but non-identical comparisons.

Answer: D

Explanation: Federal character depends on distribution, institutions and amendment, not one feature. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM5. Which statement most accurately describes bicameralism?

- A. Rajya Sabha represents States unequally by population and has special but not Senate-identical powers.
- B. Every State has equal Rajya Sabha seats.

- C. Rajya Sabha confirms Supreme Court judges like the US Senate.
- D. Rajya Sabha can remove the Union government by no-confidence.

Answer: A

Explanation: Upper houses reflect different federal bargains. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM6. Which statement most accurately describes parliamentary sovereignty?

- A. India copied unlimited British sovereignty.
- B. Indian Parliament is limited by the Constitution, rights, federalism, judicial review and basic structure.
- C. Judicial review is merely a convention.
- D. A constitutional amendment is immune from review.

Answer: B

Explanation: British origin does not erase Indian constitutional supremacy. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM7. Which statement most accurately describes rights models?

- A. DPSPs operate exactly like Irish law in India.
- B. Socio-economic rights are wholly absent from Indian doctrine.
- C. India combines enforceable Fundamental Rights with non-justiciable Directive Principles and constitutional remedies.
- D. Fundamental Rights are absolute.

Answer: C

Explanation: Text, remedies and judicial harmonisation matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM8. Which statement most accurately describes procedure and due process?

- A. Any enacted procedure is valid after Maneka.
- B. Article 21 protects only physical detention.
- C. India constitutionally copied the US phrase due process.
- D. Article 21's 'procedure established by law' acquired fairness and reasonableness through Maneka Gandhi (1978).

Answer: D

Explanation: Indian doctrine moved beyond formal legality without rewriting the text. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM9. Which statement most accurately describes amendment and basic structure?

- A. Article 368 permits broad amendment, but Kesavananda Bharati (1973) preserves the basic structure.
- B. India follows an entirely unamendable constitution.
- C. Parliament can destroy constitutional identity.
- D. The UK basic-structure doctrine binds Westminster.

Answer: A

Explanation: India occupies a middle position between rigidity and unlimited amendment. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM10. Which statement most accurately describes emergency design?

- A. Emergency automatically suspends every right.
- B. Indian emergency provisions centralise power but are bounded by text, amendments and judicial review.
- C. Germany and India have identical emergency constitutions.
- D. Federalism permanently ends during any emergency.

Answer: B

Explanation: Comparative borrowing must include post-abuse safeguards. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM11. Which statement most accurately describes secularism?

- A. India has an official religion.
- B. The USA constitutionally funds all religions equally.
- C. Indian principled engagement differs from US non-establishment and French laicite while sharing liberty and equality commitments.
- D. French laicite can be transplanted without context.

Answer: C

Explanation: Historical context shapes the institutional form of secularism. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM12. Which statement most accurately describes institutional borrowing?

- A. Borrowing imports identical powers.
- B. The Finance Commission is copied from the US Senate.
- C. Lokpal is a constitutional court.
- D. The CAG, Finance Commission, ECI and Lokpal show adaptation of audit, federal and ombudsman functions to Indian needs.

Answer: D

Explanation: Origin is only the first step of a comparative answer. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM13. Which is the safest UPSC distinction concerning written and unwritten?

- A. India has a written supreme Constitution; the UK has an uncoded constitution formed by statutes, cases and conventions.
- B. India relies only on convention.
- C. The UK has no constitutional law.
- D. Every written constitution is rigid.

Answer: A

Explanation: Codification, supremacy and rigidity are separate axes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM14. Which is the safest UPSC distinction concerning parliamentary and presidential?

- A. Parliamentary government means no separation of powers.
- B. India's executive is responsible to the Lok Sabha; the US executive has a separate electoral mandate and fixed tenure.
- C. The Indian President governs like the US President.
- D. The US Cabinet is collectively responsible to Congress.

Answer: B

Explanation: Executive-legislative relationship is the decisive comparison. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM15. Which is the safest UPSC distinction concerning semi-presidential?

- A. The French President is only ceremonial.
- B. France is identical to the US model.
- C. France combines a directly elected President with a Prime Minister responsible to Parliament.
- D. Cohabitation is constitutionally impossible.

Answer: C

Explanation: Dual executive authority changes with legislative majority. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM16. Which is the safest UPSC distinction concerning federal design?

- A. Federalism forbids asymmetry.
- B. India is unitary because residuary power lies with the Union.
- C. Every federation gives equal upper-house representation.
- D. India is federal with strong-centre and unitary features; Canada and Australia supply useful but non-identical comparisons.

Answer: D

Explanation: Federal character depends on distribution, institutions and amendment, not one feature. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM17. Which is the safest UPSC distinction concerning bicameralism?

- A. Rajya Sabha represents States unequally by population and has special but not Senate-identical powers.
- B. Every State has equal Rajya Sabha seats.
- C. Rajya Sabha confirms Supreme Court judges like the US Senate.
- D. Rajya Sabha can remove the Union government by no-confidence.

Answer: A

Explanation: Upper houses reflect different federal bargains. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM18. Which is the safest UPSC distinction concerning parliamentary sovereignty?

- A. India copied unlimited British sovereignty.
- B. Indian Parliament is limited by the Constitution, rights, federalism, judicial review and basic structure.
- C. Judicial review is merely a convention.
- D. A constitutional amendment is immune from review.

Answer: B

Explanation: British origin does not erase Indian constitutional supremacy. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM19. Which is the safest UPSC distinction concerning rights models?

- A. DPSPs operate exactly like Irish law in India.
- B. Socio-economic rights are wholly absent from Indian doctrine.
- C. India combines enforceable Fundamental Rights with non-justiciable Directive Principles and constitutional remedies.
- D. Fundamental Rights are absolute.

Answer: C

Explanation: Text, remedies and judicial harmonisation matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM20. Which is the safest UPSC distinction concerning procedure and due process?

- A. India constitutionally copied the US phrase due process.
- B. Any enacted procedure is valid after Maneka.
- C. Article 21 protects only physical detention.
- D. Article 21's 'procedure established by law' acquired fairness and reasonableness through Maneka Gandhi (1978).

Answer: D

Explanation: Indian doctrine moved beyond formal legality without rewriting the text. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM21. Which is the safest UPSC distinction concerning amendment and basic structure?

- A. Article 368 permits broad amendment, but Kesavananda Bharati (1973) preserves the basic structure.
- B. India follows an entirely unamendable constitution.
- C. Parliament can destroy constitutional identity.
- D. The UK basic-structure doctrine binds Westminster.

Answer: A

Explanation: India occupies a middle position between rigidity and unlimited amendment. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM22. Which is the safest UPSC distinction concerning emergency design?

- A. Federalism permanently ends during any emergency.
- B. Indian emergency provisions centralise power but are bounded by text, amendments and judicial review.
- C. Emergency automatically suspends every right.
- D. Germany and India have identical emergency constitutions.

Answer: B

Explanation: Comparative borrowing must include post-abuse safeguards. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM23. Which is the safest UPSC distinction concerning secularism?

- A. India has an official religion.
- B. The USA constitutionally funds all religions equally.
- C. Indian principled engagement differs from US non-establishment and French laicite while sharing liberty and equality commitments.
- D. French laicite can be transplanted without context.

Answer: C

Explanation: Historical context shapes the institutional form of secularism. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM24. Which is the safest UPSC distinction concerning institutional borrowing?

- A. The Finance Commission is copied from the US Senate.
- B. Lokpal is a constitutional court.
- C. Borrowing imports identical powers.
- D. The CAG, Finance Commission, ECI and Lokpal show adaptation of audit, federal and ombudsman functions to Indian needs.

Answer: D

Explanation: Origin is only the first step of a comparative answer. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM25. A candidate makes a close-option error about written and unwritten. Which correction is most accurate?

- A. India has a written supreme Constitution; the UK has an uncoded constitution formed by statutes, cases and conventions.
- B. The UK has no constitutional law.
- C. Every written constitution is rigid.
- D. India relies only on convention.

Answer: A

Explanation: Codification, supremacy and rigidity are separate axes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM26. A candidate makes a close-option error about parliamentary and presidential. Which correction is most accurate?

- A. The Indian President governs like the US President.
- B. India's executive is responsible to the Lok Sabha; the US executive has a separate electoral mandate and fixed tenure.
- C. The US Cabinet is collectively responsible to Congress.
- D. Parliamentary government means no separation of powers.

Answer: B

Explanation: Executive-legislative relationship is the decisive comparison. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM27. A candidate makes a close-option error about semi-presidential. Which correction is most accurate?

- A. France is identical to the US model.
- B. Cohabitation is constitutionally impossible.
- C. France combines a directly elected President with a Prime Minister responsible to Parliament.
- D. The French President is only ceremonial.

Answer: C

Explanation: Dual executive authority changes with legislative majority. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM28. A candidate makes a close-option error about federal design. Which correction is most accurate?

- A. Every federation gives equal upper-house representation.
- B. Federalism forbids asymmetry.
- C. India is unitary because residuary power lies with the Union.
- D. India is federal with strong-centre and unitary features; Canada and Australia supply useful but non-identical comparisons.

Answer: D

Explanation: Federal character depends on distribution, institutions and amendment, not one feature. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM29. A candidate makes a close-option error about bicameralism. Which correction is most accurate?

- A. Rajya Sabha represents States unequally by population and has special but not Senate-identical powers.
- B. Every State has equal Rajya Sabha seats.
- C. Rajya Sabha confirms Supreme Court judges like the US Senate.
- D. Rajya Sabha can remove the Union government by no-confidence.

Answer: A

Explanation: Upper houses reflect different federal bargains. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM30. A candidate makes a close-option error about parliamentary sovereignty. Which correction is most accurate?

- A. India copied unlimited British sovereignty.
- B. Indian Parliament is limited by the Constitution, rights, federalism, judicial review and basic structure.
- C. Judicial review is merely a convention.
- D. A constitutional amendment is immune from review.

Answer: B

Explanation: British origin does not erase Indian constitutional supremacy. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM31. A candidate makes a close-option error about rights models. Which correction is most accurate?

- A. DPSPs operate exactly like Irish law in India.
- B. Socio-economic rights are wholly absent from Indian doctrine.
- C. India combines enforceable Fundamental Rights with non-justiciable Directive Principles and constitutional remedies.
- D. Fundamental Rights are absolute.

Answer: C

Explanation: Text, remedies and judicial harmonisation matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM32. A candidate makes a close-option error about procedure and due process. Which correction is most accurate?

- A. India constitutionally copied the US phrase due process.
- B. Any enacted procedure is valid after Maneka.
- C. Article 21 protects only physical detention.
- D. Article 21's 'procedure established by law' acquired fairness and reasonableness through Maneka Gandhi (1978).

Answer: D

Explanation: Indian doctrine moved beyond formal legality without rewriting the text. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM33. A candidate makes a close-option error about amendment and basic structure. Which correction is most accurate?

- A. Article 368 permits broad amendment, but Kesavananda Bharati (1973) preserves the basic structure.
- B. Parliament can destroy constitutional identity.
- C. The UK basic-structure doctrine binds Westminster.
- D. India follows an entirely unamendable constitution.

Answer: A

Explanation: India occupies a middle position between rigidity and unlimited amendment. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM34. A candidate makes a close-option error about emergency design. Which correction is most accurate?

- A. Emergency automatically suspends every right.
- B. Indian emergency provisions centralise power but are bounded by text, amendments and judicial review.
- C. Germany and India have identical emergency constitutions.
- D. Federalism permanently ends during any emergency.

Answer: B

Explanation: Comparative borrowing must include post-abuse safeguards. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM35. A candidate makes a close-option error about secularism. Which correction is most accurate?

- A. India has an official religion.
- B. The USA constitutionally funds all religions equally.
- C. Indian principled engagement differs from US non-establishment and French laïcité while sharing liberty and equality commitments.
- D. French laïcité can be transplanted without context.

Answer: C

Explanation: Historical context shapes the institutional form of secularism. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM36. A candidate makes a close-option error about institutional borrowing. Which correction is most accurate?

- A. Borrowing imports identical powers.
- B. The Finance Commission is copied from the US Senate.
- C. Lokpal is a constitutional court.
- D. The CAG, Finance Commission, ECI and Lokpal show adaptation of audit, federal and ombudsman functions to Indian needs.

Answer: D

Explanation: Origin is only the first step of a comparative answer. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

Remedial MCQs 1-12 - Common Error Repair

RM1. Which statement best repairs a recurring error about written and unwritten?

- A. India has a written supreme Constitution; the UK has an uncoded constitution formed by statutes, cases and conventions.
- B. Every written constitution is rigid.
- C. India relies only on convention.
- D. The UK has no constitutional law.

Answer: A

Remedial explanation: Codification, supremacy and rigidity are separate axes. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM2. Which statement best repairs a recurring error about parliamentary and presidential?

- A. The US Cabinet is collectively responsible to Congress.
- B. India's executive is responsible to the Lok Sabha; the US executive has a separate electoral mandate and fixed tenure.
- C. Parliamentary government means no separation of powers.
- D. The Indian President governs like the US President.

Answer: B

Remedial explanation: Executive-legislative relationship is the decisive comparison. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM3. Which statement best repairs a recurring error about semi-presidential?

- A. France is identical to the US model.
- B. Cohabitation is constitutionally impossible.
- C. France combines a directly elected President with a Prime Minister responsible to Parliament.
- D. The French President is only ceremonial.

Answer: C

Remedial explanation: Dual executive authority changes with legislative majority. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM4. Which statement best repairs a recurring error about federal design?

- A. India is unitary because residuary power lies with the Union.
- B. Every federation gives equal upper-house representation.
- C. Federalism forbids asymmetry.

- D. India is federal with strong-centre and unitary features; Canada and Australia supply useful but non-identical comparisons.

Answer: D

Remedial explanation: Federal character depends on distribution, institutions and amendment, not one feature. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM5. Which statement best repairs a recurring error about bicameralism?

- A. Rajya Sabha represents States unequally by population and has special but not Senate-identical powers.
- B. Rajya Sabha confirms Supreme Court judges like the US Senate.
- C. Rajya Sabha can remove the Union government by no-confidence.
- D. Every State has equal Rajya Sabha seats.

Answer: A

Remedial explanation: Upper houses reflect different federal bargains. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM6. Which statement best repairs a recurring error about parliamentary sovereignty?

- A. India copied unlimited British sovereignty.
- B. Indian Parliament is limited by the Constitution, rights, federalism, judicial review and basic structure.
- C. Judicial review is merely a convention.
- D. A constitutional amendment is immune from review.

Answer: B

Remedial explanation: British origin does not erase Indian constitutional supremacy. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM7. Which statement best repairs a recurring error about rights models?

- A. Socio-economic rights are wholly absent from Indian doctrine.
- B. Fundamental Rights are absolute.
- C. India combines enforceable Fundamental Rights with non-justiciable Directive Principles and constitutional remedies.
- D. DPSPs operate exactly like Irish law in India.

Answer: C

Remedial explanation: Text, remedies and judicial harmonisation matter. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM8. Which statement best repairs a recurring error about procedure and due process?

- A. India constitutionally copied the US phrase due process.
- B. Any enacted procedure is valid after Maneka.
- C. Article 21 protects only physical detention.
- D. Article 21's 'procedure established by law' acquired fairness and reasonableness through Maneka Gandhi (1978).

Answer: D

Remedial explanation: Indian doctrine moved beyond formal legality without rewriting the text. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM9. Which statement best repairs a recurring error about amendment and basic structure?

- A. Article 368 permits broad amendment, but Kesavananda Bharati (1973) preserves the basic structure.
- B. The UK basic-structure doctrine binds Westminster.
- C. India follows an entirely unamendable constitution.
- D. Parliament can destroy constitutional identity.

Answer: A

Remedial explanation: India occupies a middle position between rigidity and unlimited amendment. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM10. Which statement best repairs a recurring error about emergency design?

- A. Germany and India have identical emergency constitutions.
- B. Indian emergency provisions centralise power but are bounded by text, amendments and judicial review.
- C. Federalism permanently ends during any emergency.
- D. Emergency automatically suspends every right.

Answer: B

Remedial explanation: Comparative borrowing must include post-abuse safeguards. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM11. Which statement best repairs a recurring error about secularism?

- A. French laicite can be transplanted without context.
- B. India has an official religion.
- C. Indian principled engagement differs from US non-establishment and French laicite while sharing liberty and equality commitments.
- D. The USA constitutionally funds all religions equally.

Answer: C

Remedial explanation: Historical context shapes the institutional form of secularism. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM12. Which statement best repairs a recurring error about institutional borrowing?

- A. The Finance Commission is copied from the US Senate.
- B. Lokpal is a constitutional court.
- C. Borrowing imports identical powers.
- D. The CAG, Finance Commission, ECI and Lokpal show adaptation of audit, federal and ombudsman functions to Indian needs.

Answer: D

Remedial explanation: Origin is only the first step of a comparative answer. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

PYQS AND ANSWER PRACTICE

Verified and Supporting PYQs with Model Solutions

Verified direct PYQ 1 - 2018 GS-II Q13

Question: Examine the basic tenets of the Indian and United States political systems.

Directive: Examine · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: Examine the basic tenets of the Indian and United States political systems. The answer must respond to the directive **Examine** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Both are constitutional democracies with federalism, rights, bicameralism and judicial review.
- **Claim -> evidence -> analysis -> qualification:** India uses parliamentary responsibility; the USA uses presidential separation.
- **Claim -> evidence -> analysis -> qualification:** Indian federalism has residuary Union power, single citizenship and an integrated judiciary.

- **Claim -> evidence -> analysis -> qualification:** Comparison must connect design to accountability, stability and federal representation.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 2 - 2019 GS-II Q5

Question: What can France learn from the Indian approach to secularism?

Directive: What can it learn? · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: What can France learn from the Indian approach to secularism?. The answer must respond to the directive **What can it learn?** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Indian secularism permits principled engagement and social reform rather than strict institutional separation.
- **Claim -> evidence -> analysis -> qualification:** Equality, liberty and proportionality can protect individuals within religious communities.
- **Claim -> evidence -> analysis -> qualification:** French laicite arises from a different republican history.
- **Claim -> evidence -> analysis -> qualification:** Transplantation must therefore be selective, contextual and rights-centred.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 3 - 2020 GS-II Q4

Question: Highlight the points of convergence and divergence between the judicial systems of India and the United Kingdom.

Directive: Highlight · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Highlight the points of convergence and divergence between the judicial systems of India and the United Kingdom. The answer must respond to the directive **Highlight** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Both share common-law reasoning, precedent and institutional independence.
- **Claim -> evidence -> analysis -> qualification:** India operates under written constitutional supremacy and strong-form judicial review.
- **Claim -> evidence -> analysis -> qualification:** The UK remains shaped by parliamentary sovereignty and an uncoded constitution.
- **Claim -> evidence -> analysis -> qualification:** Court structure, rights remedies and appointments require separate comparison.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 4 - 2022 GS-II Q14

Question: Critically examine the election procedures for the Presidents of India and France.

Directive: Critically examine · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: Critically examine the election procedures for the Presidents of India and France. The answer must respond to the directive **Critically examine** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** India elects an indirectly chosen constitutional head through a weighted federal electoral college.

- **Claim -> evidence -> analysis -> qualification:** France directly elects a politically active semi-presidential head through majority voting.
- **Claim -> evidence -> analysis -> qualification:** Procedure follows office design, mandate and relation with the legislature.
- **Claim -> evidence -> analysis -> qualification:** The comparison should not equate formal title with constitutional power.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 5 - 2023 GS-II Q4

Question: Compare and contrast British and Indian parliamentary practice.

Directive: Compare and contrast · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Compare and contrast British and Indian parliamentary practice. The answer must respond to the directive **Compare and contrast** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Both use responsible cabinet government and lower-house confidence.
- **Claim -> evidence -> analysis -> qualification:** India constitutionalises rules that Britain often leaves to convention.
- **Claim -> evidence -> analysis -> qualification:** Written supremacy, federalism, rights and judicial review limit Indian Parliament.
- **Claim -> evidence -> analysis -> qualification:** The British source is adapted rather than copied.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 6 - 2024 GS-II Q15

Question: Discuss India as a secular State in comparison with the secular principles of the United States.

Directive: Discuss · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: Discuss India as a secular State in comparison with the secular principles of the United States. The answer must respond to the directive **Discuss** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Both protect religious liberty and equality but use different institutional techniques.
- **Claim -> evidence -> analysis -> qualification:** The US combines non-establishment and free exercise.
- **Claim -> evidence -> analysis -> qualification:** India permits principled engagement, reform and denominational protection.
- **Claim -> evidence -> analysis -> qualification:** Neither system is captured by a complete-separation caricature.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 7 - 2025 GS-II

Question: Compare the pardon powers of the Presidents of India and the United States.

Directive: Compare · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Compare the pardon powers of the Presidents of India and the United States. The answer must respond to the directive **Compare** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Compare constitutional source, advice, offence jurisdiction, express limits and judicial review.

- **Claim -> evidence -> analysis -> qualification:** India's President ordinarily acts on ministerial advice.
- **Claim -> evidence -> analysis -> qualification:** The US President has a personal federal pardon power subject to textual limits.
- **Claim -> evidence -> analysis -> qualification:** Pre-emptive pardon concerns completed conduct, not future illegality.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 8 - 2025 GS-II

Question: Compare judicial appointments in India and the United States and assess the accountability-independence balance.

Directive: Compare and assess · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: Compare judicial appointments in India and the United States and assess the accountability-independence balance. The answer must respond to the directive **Compare and assess** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** India's collegium emerged through the Judges Cases and the NJAC judgment.
- **Claim -> evidence -> analysis -> qualification:** The US uses presidential nomination and Senate confirmation.
- **Claim -> evidence -> analysis -> qualification:** India prioritises judicial primacy; the US model makes political accountability explicit.
- **Claim -> evidence -> analysis -> qualification:** Both face transparency, delay and politicisation concerns in different forms.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Original Solved Mains Practice

M1. Distinguish constitutional borrowing from constitutional adaptation.

Directive: Distinguish · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Distinguish constitutional borrowing from constitutional adaptation. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Parliamentary And Presidential - claim -> evidence -> analysis -> qualification:** India's executive is responsible to the Lok Sabha; the US executive has a separate electoral mandate and fixed tenure. Executive-legislative relationship is the decisive comparison.
- **Semi-Presidential - claim -> evidence -> analysis -> qualification:** France combines a directly elected President with a Prime Minister responsible to Parliament. Dual executive authority changes with legislative majority.
- **Federal Design - claim -> evidence -> analysis -> qualification:** India is federal with strong-centre and unitary features; Canada and Australia supply useful but non-identical comparisons. Federal character depends on distribution, institutions and amendment, not one feature.
- **Bicameralism - claim -> evidence -> analysis -> qualification:** Rajya Sabha represents States unequally by population and has special but not Senate-identical powers. Upper houses reflect different federal bargains.
- **Parliamentary Sovereignty - claim -> evidence -> analysis -> qualification:** Indian Parliament is limited by the Constitution, rights, federalism, judicial review and basic structure. British origin does not erase Indian constitutional supremacy.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M2. Compare Rajya Sabha with the United States Senate.

Directive: Compare · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Compare Rajya Sabha with the United States Senate. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Semi-Presidential - claim -> evidence -> analysis -> qualification:** France combines a directly elected President with a Prime Minister responsible to Parliament. Dual executive authority changes with legislative majority.
- **Federal Design - claim -> evidence -> analysis -> qualification:** India is federal with strong-centre and unitary features; Canada and Australia supply useful but non-identical comparisons. Federal character depends on distribution, institutions and amendment, not one feature.
- **Bicameralism - claim -> evidence -> analysis -> qualification:** Rajya Sabha represents States unequally by population and has special but not Senate-identical powers. Upper houses reflect different federal bargains.
- **Parliamentary Sovereignty - claim -> evidence -> analysis -> qualification:** Indian Parliament is limited by the Constitution, rights, federalism, judicial review and basic structure. British origin does not erase Indian constitutional supremacy.
- **Rights Models - claim -> evidence -> analysis -> qualification:** India combines enforceable Fundamental Rights with non-justiciable Directive Principles and constitutional remedies. Text, remedies and judicial harmonisation matter.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M3. Explain why the Indian President is not comparable to the United States President merely by title.

Directive: Explain · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Explain why the Indian President is not comparable to the United States President merely by title. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Federal Design - claim -> evidence -> analysis -> qualification:** India is federal with strong-centre and unitary features; Canada and Australia supply useful but non-identical comparisons. Federal character depends on distribution, institutions and amendment, not one feature.
- **Bicameralism - claim -> evidence -> analysis -> qualification:** Rajya Sabha represents States unequally by population and has special but not Senate-identical powers. Upper houses reflect different federal bargains.
- **Parliamentary Sovereignty - claim -> evidence -> analysis -> qualification:** Indian Parliament is limited by the Constitution, rights, federalism, judicial review and basic structure. British origin does not erase Indian constitutional supremacy.
- **Rights Models - claim -> evidence -> analysis -> qualification:** India combines enforceable Fundamental Rights with non-justiciable Directive Principles and constitutional remedies. Text, remedies and judicial harmonisation matter.
- **Procedure And Due Process - claim -> evidence -> analysis -> qualification:** Article 21's 'procedure established by law' acquired fairness and reasonableness through Maneka Gandhi (1978). Indian doctrine moved beyond formal legality without rewriting the text.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M4. Compare parliamentary sovereignty in the United Kingdom with constitutional supremacy in India.

Directive: Compare · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Compare parliamentary sovereignty in the United Kingdom with constitutional supremacy in India. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Bicameralism - claim -> evidence -> analysis -> qualification:** Rajya Sabha represents States unequally by population and has special but not Senate-identical powers. Upper houses reflect different federal bargains.
- **Parliamentary Sovereignty - claim -> evidence -> analysis -> qualification:** Indian Parliament is limited by the Constitution, rights, federalism, judicial review and basic structure. British origin does not erase Indian constitutional supremacy.
- **Rights Models - claim -> evidence -> analysis -> qualification:** India combines enforceable Fundamental Rights with non-justiciable Directive Principles and constitutional remedies. Text, remedies and judicial harmonisation matter.
- **Procedure And Due Process - claim -> evidence -> analysis -> qualification:** Article 21's 'procedure established by law' acquired fairness and reasonableness through Maneka Gandhi (1978). Indian doctrine moved beyond formal legality without rewriting the text.
- **Amendment And Basic Structure - claim -> evidence -> analysis -> qualification:** Article 368 permits broad amendment, but Kesavananda Bharati (1973) preserves the basic structure. India occupies a middle position between rigidity and unlimited amendment.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M5. Assess India's hybrid federal-parliamentary constitutional design.

Directive: Assess · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Assess India's hybrid federal-parliamentary constitutional design. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Parliamentary Sovereignty - claim -> evidence -> analysis -> qualification:** Indian Parliament is limited by the Constitution, rights, federalism, judicial review and basic structure. British origin does not erase Indian constitutional supremacy.
- **Rights Models - claim -> evidence -> analysis -> qualification:** India combines enforceable Fundamental Rights with non-justiciable Directive Principles and constitutional remedies. Text, remedies and judicial harmonisation matter.
- **Procedure And Due Process - claim -> evidence -> analysis -> qualification:** Article 21's 'procedure established by law' acquired fairness and reasonableness through Maneka Gandhi (1978). Indian doctrine moved beyond formal legality without rewriting the text.
- **Amendment And Basic Structure - claim -> evidence -> analysis -> qualification:** Article 368 permits broad amendment, but Kesavananda Bharati (1973) preserves the basic structure. India occupies a middle position between rigidity and unlimited amendment.
- **Emergency Design - claim -> evidence -> analysis -> qualification:** Indian emergency provisions centralise power but are bounded by text, amendments and judicial review. Comparative borrowing must include post-abuse safeguards.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M6. Compare Indian secularism with the United States and France.

Directive: Compare · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Compare Indian secularism with the United States and France. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Rights Models - claim -> evidence -> analysis -> qualification:** India combines enforceable Fundamental Rights with non-justiciable Directive Principles and constitutional remedies. Text, remedies and judicial harmonisation matter.
- **Procedure And Due Process - claim -> evidence -> analysis -> qualification:** Article 21's 'procedure established by law' acquired fairness and reasonableness through Maneka Gandhi (1978). Indian doctrine moved beyond formal legality without rewriting the text.
- **Amendment And Basic Structure - claim -> evidence -> analysis -> qualification:** Article 368 permits broad amendment, but Kesavananda Bharati (1973) preserves the basic structure. India occupies a middle position between rigidity and unlimited amendment.
- **Emergency Design - claim -> evidence -> analysis -> qualification:** Indian emergency provisions centralise power but are bounded by text, amendments and judicial review. Comparative borrowing must include post-abuse safeguards.
- **Secularism - claim -> evidence -> analysis -> qualification:** Indian principled engagement differs from US non-establishment and French laïcité while sharing liberty and equality commitments. Historical context shapes the institutional form of secularism.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M7. Evaluate how India adapted foreign constitutional features to its social and federal context.

Directive: Evaluate · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Evaluate how India adapted foreign constitutional features to its social and federal context. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Procedure And Due Process - claim -> evidence -> analysis -> qualification:** Article 21's 'procedure established by law' acquired fairness and reasonableness through Maneka Gandhi (1978). Indian doctrine moved beyond formal legality without rewriting the text.
- **Amendment And Basic Structure - claim -> evidence -> analysis -> qualification:** Article 368 permits broad amendment, but Kesavananda Bharati (1973) preserves the basic structure. India occupies a middle position between rigidity and unlimited amendment.
- **Emergency Design - claim -> evidence -> analysis -> qualification:** Indian emergency provisions centralise power but are bounded by text, amendments and judicial review. Comparative borrowing must include post-abuse safeguards.
- **Secularism - claim -> evidence -> analysis -> qualification:** Indian principled engagement differs from US non-establishment and French laïcité while sharing liberty and equality commitments. Historical context shapes the institutional form of secularism.

- **Institutional Borrowing - claim -> evidence -> analysis -> qualification:** The CAG, Finance Commission, ECI and Lokpal show adaptation of audit, federal and ombudsman functions to Indian needs. Origin is only the first step of a comparative answer.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M8. Design an India-centred comparative matrix covering executive, federalism, rights, courts, amendment, emergency and accountability institutions.

Directive: Design and evaluate · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Design an India-centred comparative matrix covering executive, federalism, rights, courts, amendment, emergency and accountability institutions. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Amendment And Basic Structure - claim -> evidence -> analysis -> qualification:** Article 368 permits broad amendment, but Kesavananda Bharati (1973) preserves the basic structure. India occupies a middle position between rigidity and unlimited amendment.
- **Emergency Design - claim -> evidence -> analysis -> qualification:** Indian emergency provisions centralise power but are bounded by text, amendments and judicial review. Comparative borrowing must include post-abuse safeguards.
- **Secularism - claim -> evidence -> analysis -> qualification:** Indian principled engagement differs from US non-establishment and French laicite while sharing liberty and equality commitments. Historical context shapes the institutional form of secularism.
- **Institutional Borrowing - claim -> evidence -> analysis -> qualification:** The CAG, Finance Commission, ECI and Lokpal show adaptation of audit, federal and ombudsman functions to Indian needs. Origin is only the first step of a comparative answer.
- **Written And Unwritten - claim -> evidence -> analysis -> qualification:** India has a written supreme Constitution; the UK has an uncoded constitution formed by statutes, cases and conventions. Codification, supremacy and rigidity are separate axes.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.